

Calendar Line 1

Case Name: *Stoner et al. v. Contract Sweeping Services, LLC et al.*
Case No.: 23CV410973

This is class action arising from alleged wage and hour violations, brought by plaintiff Darcel Stoner (“Plaintiff”) against defendant SCA of CA, LLC (“SCA” or “Defendant”).¹ In the operative Second Amended Complaint (“SAC”), filed September 4, 2025, Plaintiff asserts causes of action for: (1) failure to pay prevailing wages; (2) failure to furnish accurate wage statements; (3) failure to provide wages when due; (4) unfair competition; and (5) violations of the Private Attorneys General Act.

Plaintiff’s motion for class certification is now before the Court. Plaintiff moves to certify a class of street sweepers employed by Defendant SCA who performed street sweeping work in California under SCA’s contracts with public entities. The Court has considered the moving, opposition, and reply papers, the supporting and supplemental declarations, the requests for judicial notice and evidentiary objections, the proposed trial plan and responses, and the arguments of counsel. As discussed below, the Court’s tentative ruling is to GRANT the motion for class certification.

I. Background

Plaintiff’s theory of recovery is that SCA’s policy relating to the payment of street sweepers performing work pursuant to contracts with municipalities does not comply with California’s Prevailing Wage Law (Lab. Code §§ 1720 et seq., “CPWL”). (Memorandum, p. 1:6–28.) Plaintiff contends that street-sweeping work should be characterized as within the CPWL’s definition of “maintenance,” thereby subjecting SCA to the requirement of paying prevailing wages for such work. SCA argues that street sweeper operators perform “janitorial or custodial services” as defined by the CPWL, exempting their work from the prevailing wage requirement. (Opposition, p. 7:1-25.)

¹ The action was initially brought by plaintiffs Darcel Stoner and Peter White against defendants Contract Sweeping Services, Inc. (“CSS”) and SCA. On August 28, 2023, the Court granted the plaintiffs’ request to dismiss Plaintiff White’s claims without prejudice. Plaintiff Stoner and CSS subsequently reached a settlement agreement as to the claims against CSS, and on May 21, 2026, the Court granted the motion for preliminary approval of that settlement.

The parties each set forth a summary of relevant facts. (Memorandum, pp. 2:17–7:9; Opposition, pp. 7:26–10:1.) In broad terms, SCA provides power street-sweeping services to municipalities and other public entities throughout California, as well as to private clients. Its street-sweeper operators drive specialized vehicles to remove litter, dirt, leaves, and debris from public streets, roadways, parking lots, and other driveable surfaces, and to haul and dispose of the collected debris. SCA’s discovery responses and its own opposition confirm that the operators’ job duties “are done in furtherance of the goal of cleaning the streets,” and that SCA maintains a common California employee handbook and common timekeeping and pay practices.

SCA admits that it decides whether to pay prevailing wages on a given public contract based solely on whether the contract requires such payment, thus leaving the CPWL coverage determination to the awarding public entity. SCA does not independently assess statutory coverage and has never sought a coverage determination from the Department of Industrial Relations (“DIR”). According to Plaintiff’s evidence, even where prevailing wages are paid, SCA pays them only for time when the sweeper’s “brooms are spinning,” and not for required travel from SCA’s yards to the route, water refills, or debris dumping.

A Belaire-West notice list produced by SCA identifies 649 individuals employed as street sweepers in California during the relevant period. SCA has admitted that more than 100 of its California street sweepers performed work under public-entity contracts during the period.

II. Requests for Judicial Notice and Evidentiary Objections

A. Plaintiff’s Request for Judicial Notice

Plaintiff requests judicial notice of Exhibits 1, 2, 3, 10, 13, 17, 18, 19, 20, and 21. SCA objects only to Exhibits 17 and 18.

The unopposed exhibits consist of pleadings, court orders, Secretary of State records, DIR determinations, and public council records. These are proper subjects of judicial notice as court records and official acts under Evidence Code sections 452(c), (d), and (h). The request is

GRANTED as to those exhibits, which the Court notices for their existence and legal effect but not for the truth of any reasonably disputed matter asserted within them.

As to Exhibit 17, the request is GRANTED IN PART and DENIED IN PART. This is a chart prepared by counsel summarizing public sweeping contracts said to have been obtained from public websites. The Court takes judicial notice of the existence of genuine public records to the extent properly before it but declines to take judicial notice of the truth of the contents of the litigation-prepared summary. The underlying terms of contracts not in the record are neither indisputable nor properly authenticated. As to Exhibit 18 (a report from the City of Malibu), the request is GRANTED as to the existence and public character of the official report and DENIED as to the truth of the statement attributed within it to SCA, which is hearsay not subject to judicial notice. (See *Herrera v. Deutsche Bank Nat'l Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.) These rulings do not affect the outcome of the motion, as the Court does not rely on the contested matter in Exhibits 17 or 18 to find any element of certification satisfied.

B. SCA's Evidence

In his reply, Plaintiff questions the weight of SCA's twenty-two declarations from current employees gathered under assertedly coercive conditions. The Court need not resolve any objection to admissibility. For purposes of certification, those declarations are consistent with Plaintiff's showing that the operators perform uniform cleaning work; they do not establish that the legal characterization of the work varies from contract to contract.

III. Legal Standard

California Code of Civil Procedure section 382 authorizes certification of a class "when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court[.]"

The certification question is essentially a procedural one that does not ask whether an action is legally or factually meritorious. A trial court ruling on a certification motion determines whether the issues which may be jointly tried, when compared with those requiring separate adjudication, are so numerous or substantial that the

maintenance of a class action would be advantageous to the judicial process and to the litigants.

(*Sav-On Drug Stores, Inc. v. Superior Court* (2004) 34 Cal.4th 319, 326, internal punctuation and citations omitted.) The movant “has the burden to establish the existence of both an ascertainable class and a well-defined community of interest among class members.” (*Ibid.*) The proponent must also show that class treatment is superior to alternatives and that the case is manageable. (*Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal.4th 1004, 1021; *Duran v. U.S. Bank, N.A.* (2014) 59 Cal.4th 1, 28-29.)

IV. Discussion

Plaintiff moves for certification of a class defined as: “all individuals employed by SCA and/or one of its subsidiaries during the period from February 8, 2019 through the present who have performed street sweeping work in California pursuant to SCA’s contracts and/or subcontracts with public entities or municipalities.” (Notice of Motion and Motion, p. 2:4–10.) As the moving party, Plaintiff has the burden to demonstrate the following: (A) an ascertainable class; (B) a well-defined community of interest; and (C) substantial benefits of class litigation. (*Brinker, supra*, 53 Cal.4th at p. 1021.)

A. Ascertainable Class

A class is ascertainable “when it is defined in terms of objective characteristics and common transactional facts that make the ultimate identification of class members possible when that identification becomes necessary.” (*Noel v. Thrifty Payless, Inc.* (2019) 7 Cal.5th 955, 980.)

Here the proposed class – street sweepers employed by SCA who performed work under SCA’s public-entity contracts during the class period – is defined by objective, records-based criteria. SCA has already identified 649 street sweepers through the Belaire-West process and has admitted that more than 100 performed public-contract work. The class is ascertainable, and numerosity is satisfied. SCA does not contend otherwise.

B. Community of Interest

The “community of interest” requirement encompasses three factors: (1) predominant questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class. (*Sav-On, supra*, 34 Cal.4th at p. 326.)

1. Predominant Questions of Law or Fact

“As a general rule if the defendant’s liability can be determined by facts common to all members of the class, a class will be certified even if the members must individually prove their damages.” (*Hicks v. Kaufman & Broad Home Corp.* (2001) 89 Cal.App.4th 908, 916, citation omitted.) “In order to determine whether common questions of fact predominate the trial court must examine the issues framed by the pleadings and the law applicable to the causes of action alleged.” (*Ibid.*) The answer hinges on “whether the theory of recovery advanced by the proponents of certification is, as an analytical matter, likely to prove amenable to class treatment.” (*Sav-On, supra*, 34 Cal.4th at p. 327.)

i. Common Questions Predominate

The gravamen of this case is a single, uniform, and undisputed pay policy: SCA pays prevailing wages to its street sweepers only when a public contract expressly requires it, and not otherwise. SCA admits this practice. (Opposition, p. 9:17–19.) Plaintiff’s theory of liability is that this practice violates the CPWL because street sweeping performed under public contracts is covered “maintenance” work for which prevailing wages must be paid as a matter of statute, regardless of contract language. (Memorandum, pp. 9:21 – 10:2; *Lusardi Construction Co. v. Aubry* (1992) 1 Cal.4th 976, 987–988 [“[t]o construe the prevailing wage law as applicable only when the contractor and the public entity have included in the contract language ... would encourage awarding bodies and contractors to legally circumvent the law, [and] would reduce the prevailing wage law to merely an advisory expression of the Legislature’s view”].)

Whether Plaintiff’s theory is correct presents a common legal question because it does not vary by employee, route, or contract, but instead turns on the nature of the street sweeping

work and the proper construction of the CPWL and its implementing regulation (Cal. Code Regs., tit. 8, § 16000). The Court need not determine whether Plaintiff or SCA has the correct interpretation of the CPWL as applied to the facts in this case. Whichever way the question may ultimately be answered here, that answer will resolve a common legal question and central issue for the entire class. Therefore, there is a predominant common question rendering the case suitable for class treatment. (*Brinker, supra*, 53 Cal.4th at p. 1022; *Sav-On, supra*, 34 Cal.4th at p. 327.)

SCA's robust opposition is largely devoted to arguing the merits of CPWL coverage: that street sweeping is excluded "janitorial or custodial" service under section 16000; that the DIR coverage letters on which Plaintiff relies are non-binding or superseded; and that the Legislature's failure to enact Assembly Bill 1886 confirms that the CPWL does not reach street sweeping. (Opposition, pp. 12:6–23:24.) Defendant sets forth detailed and substantial arguments in support of its contention that Plaintiff cannot establish a common unlawful policy.

Plaintiff disputes each of Defendant's arguments. (Reply, pp. 2:13–10:28.) Plaintiff relies upon, among other things, the regulatory text, *Reliable Tree Experts v. Baker* (2011) 200 Cal.App.4th 785, 793–799, DIR determinations, and the recent decision in *Acito v. Lance Soares Inc.* (Super. Ct. L.A. County, 2025, No. 23STCV24858) 2025 LX 311893, 2025 Cal. Super. LEXIS 33769, at *5 [in a summary judgment decision, the court stated: "Plaintiffs' operation of the street sweepers pursuant to LSI's contract falls within the definition of 'maintenance' and 'public works.' [Citation.]"])

The Court need not and does not resolve the parties' merits dispute today. The key factor for certification is that the dispute is common because it will be answered identically for every class member. Furthermore, the strength of SCA's merits presentation – asserting a common defense – tends to confirm, rather than defeat, the predominance of the common question. (*Brinker, supra*, 53 Cal.4th at pp. 1023-1024.)

ii. *Palacio is Distinguishable*

SCA argues, under *Palacio v. Jan & Gail's Care Homes, Inc.* (2015) 242 Cal.App.4th 1133, 1040–1041, that because its policy is lawful there is no common unlawful policy to support certification. (Opposition, pp. 20:12–21:6.) *Palacio* is distinguishable. There, the wage-order subdivision at issue indisputably did not apply to the employer, so the lawfulness of the policy was not reasonably subject to dispute. Here, by contrast, the lawfulness of SCA's policy depends on a genuinely contested question of statutory coverage, and one on which the DIR has issued coverage determinations favorable to Plaintiff's position and on which at least one California court has agreed with that position. To accept SCA's *Palacio* argument, the Court would have to decide, at the certification stage and in SCA's favor, the very merits question that pervades this case and would dispose of the entire action. *Brinker* does not require (and *Sav-On* counsels against) resolving a disputed and dispositive legal question against the class proponent on a procedural certification motion. The Court declines to do so here. SCA remains free to present its coverage defense by dispositive motion or at trial, where it may be resolved for the class as a whole.

iii. *SCA's Asserted Individualized Issues Do Not Predominate*

SCA contends that, even if some sweeping were covered, coverage and damages would require contract-by-contract, route-by-route, and employee-by-employee inquiries. (Opposition, pp. 21:7–23:9.) The Court is not persuaded that such inquiries predominate. SCA does not identify a single public sweeping contract under which the operators perform work materially different in nature from sweeping public streets. SCA's own evidence shows that every operator is responsible for street cleaning. The legal characterization of that work under Section 16000 does not change from one sweeping contract to another. SCA's reliance on the number of contracts distracts from the pertinent question on class certification: whether a common liability theory can be established with common proof. Here, it can, because of SCA's admitted uniform policy, its job descriptions and corporate testimony, and its centralized timekeeping and payroll records. (*Duran*, supra, 59 Cal.4th at pp. 28-30; *Sav-On*, supra, 34 Cal.4th at p. 333.)

Plaintiff's related theory – that SCA fails to pay prevailing wages for all time spent in execution of covered contracts, including required travel, water, and dumping time – is likewise governed by a common legal rule (*Morillion v. Royal Packing Co.* (2000) 22 Cal.4th 575) and SCA's uniform "brooms-spinning" practice. (Memorandum, p. 14:8–15; Reply, p. 10:3–28.) To the extent the application of that rule requires individualized computation, that is a damages question. The need for individualized proof of damages does not defeat predominance where liability is established by common proof. (*Brinker, supra*, 53 Cal.4th at p. 1022; *Bufile v. Dollar Financial Group, Inc.* (2008) 162 Cal.App.4th 1193, 1207.) Damages may be addressed through SCA's records in a later phase.

iv. Derivative Claims

The wage-statement (Lab. Code, § 226), unfair-competition (Bus. & Prof. Code, § 17200), and PAGA claims are derivative of the prevailing-wage claim, as the parties agree. Because they rise or fall with the common prevailing-wage question and depend on the same uniform policies and the same class-wide records, they are certifiable to the same extent as the principal claim.

2. Typicality

"The typicality requirement's purpose is to assure that the interest of the named representative aligns with the interests of the class." (*Martinez v. Joe's Crab Shack Holdings* (2014) 231 Cal.App.4th 362, 375, internal quotations and citations omitted.) Typicality requires that the representative's claims arise from the same course of conduct and be based on the same legal theory as those of the class. (*Classen v. Weller* (1983) 145 Cal.App.3d 27, 46.)

Here, Plaintiff worked as an SCA street sweeper and was subject to the same policy regarding prevailing wages (i.e., only when required by the municipal contract) as the class. (Memorandum, pp. 15:21–16:13.) He was also subject to the same limitation of prevailing-wage pay to "brooms-spinning" time, and he suffered the same asserted injury. SCA's contention that Plaintiff cannot represent sweepers who worked contracts he did not personally work is effectively a request to limit the class to Plaintiff's own contracts. Because Plaintiff's

theory rests on the generic legal character of the street-sweeping work rather than the terms of any particular contract, typicality does not require contract-by-contract overlap. The Court previously declined to limit pre-certification discovery to Plaintiff's contracts, and it declines to limit the class on that basis now. Typicality is satisfied.

3. Adequacy of Representation

"Although the questions whether a plaintiff has claims typical of the class and will be able to adequately represent the class are related, they are not synonymous." (*Martinez, supra*, 231 Cal.App.4th at p. 375.) "The adequacy of representation component of the community of interest requirement for class certification comes into play when the party opposing certification brings forth evidence indicating widespread antagonism to the class suit." (*Ibid.*, quoting *Capitol People First v. State Dept. of Developmental Services* (2007) 155 Cal.App.4th 676, 696-697.) Adequacy turns on whether the representative's counsel is qualified and whether the representative has interests antagonistic to the class. (*McGhee v. Bank of America* (1976) 60 Cal.App.3d 442, 450.) Only a conflict that is fundamental and goes to the heart of the litigation defeats adequacy. (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 238.)

Here, Counsel's qualifications are established and unchallenged. SCA raises two challenges to Plaintiff's adequacy. First, it argues that Plaintiff's separate race-discrimination action – in which he alleges he was denied prevailing-wage route assignments because of his race, while other employees received them – is irreconcilable with his claim to be typical of those employees. (Opposition, pp. 24:17 – 25:19.) The Court disagrees that this creates a disabling conflict. The discrimination action concerns the assignment of routes; this action concerns whether SCA lawfully pays for the sweeping work performed. Success in one does not require failure in the other, and the two claims are not antagonistic in any way that goes to the heart of the class claim. The authorities SCA cites (*Gau, Kurczi, Levias*) are distinguishable because they involved conflicts of a different order, such as settlement structures that traded off

class recovery.² Moreover, the record reflects that Plaintiff filed a Notice of Related Cases identifying the discrimination action, undercutting SCA's suggestion of concealment. The Court further notes that a class settlement, if any, will require court approval and may not release or compromise absent members' claims without scrutiny under California Rules of Court, rule 3.769.

Second, SCA argues that Plaintiff is unfit because he was disciplined for clocking in before arriving on site and because his verified complaint stated he was "never" paid prevailing wages, when records show he sometimes was. (Opposition, pp. 25:20 – 26:11.) While these matters may bear on Plaintiff's credibility, they do not necessarily defeat adequacy. The class-liability question turns on the construction of the CPWL and SCA's admitted uniform policy and documentary records, not on Plaintiff's personal timekeeping. The authorities cited by SCA (*Savino, Kline*) involved credibility problems central to the liability theory; that is not the case here.³ The Court finds Plaintiff to be an adequate class representative. SCA remains free to test Plaintiff's credibility through cross-examination on the merits.

C. Superiority and Manageability of Class Action

"[A] class action should not be certified unless substantial benefits accrue both to litigants and the courts... ." (*Basurco v. 21st Century Ins.* (2003) 108 Cal.App.4th 110, 120, internal quotation marks omitted.) The question is whether a class action would be superior to individual lawsuits. (*Ibid.*) "Thus, even if questions of law or fact predominate, the lack of superiority provides an alternative ground to deny class certification." (*Ibid.*) Generally, "a class action is proper where it provides small claimants with a method of obtaining redress and when numerous parties suffer injury of insufficient size to warrant individual action." (*Id.* at pp. 120-121, internal quotation marks omitted.)

SCA's opposition does not argue that individual litigation would be superior to class treatment. Given the size of the class, the modest individual stakes, and the predominance of a

² *Gau v. Hillstone Rest. Grp.* (N.D. Cal. Mar. 31, 2022) 2022 U.S. Dist. LEXIS 60704; *Kurczi v. Eli Lilly & Co.* (N.D. Ohio Feb. 27, 1995) 160 F.R.D. 667; *Levias v. Pacific Maritime Ass'n* (W.D. Wash. Jan. 25, 2010) 2010 U.S. Dist. LEXIS 11495.

³ *Savino v. Computer Credit, Inc.* (2d Cir. 1988) 164 F.3d 81, 86–87; *Kline v. Wolf* (2d Cir. 1983) 702 F.2d 400, 402–403.

common legal question concerning a uniform policy, the class device is plainly the superior means of adjudication. The alternative SCA proposes (limiting the class to Plaintiff's contracts) would invite a multiplicity of duplicative suits raising the identical policy and legal question, contrary to the purposes of the class device. (*Sav-On, supra*, 34 Cal.4th at pp. 339-340.)

On manageability, the Court has reviewed Plaintiff's proposed trial plan and SCA's responses. The plan contemplates a primarily legal liability phase based on SCA's uniform policy, job descriptions, and corporate testimony, with representative testimony, followed by a records-based damages phase, and proposes statistical sampling only "if necessary" for the wage-statement claim and only by agreement. That approach is materially different from the methodology prohibited in *Duran*, and it preserves SCA's ability to litigate its defenses. Because liability here is principally a legal question provable from common evidence, the case is manageable. Nevertheless, the Court will require Plaintiff to submit a supplemental and more detailed trial plan following merits discovery, as set forth below, and the parties may seek to revisit manageability before any class trial. (*Duran, supra*, 59 Cal.4th at pp. 31–32 [trial plans may evolve].)

V. Conclusion

For the reasons stated, the Court tentatively rules as follows:

1. Plaintiff's motion for class certification is GRANTED as to the Second Amended Complaint's causes of action for unpaid prevailing wages, inaccurate wage statements, and unfair competition, on behalf of the Class as defined below.
2. The Court certifies the following Class: "All individuals employed by SCA of CA, LLC and/or one of its subsidiaries during the period from February 8, 2019 through the present who performed street sweeping work in California pursuant to SCA's contracts and/or subcontracts with public entities and municipalities."
3. Plaintiff Darcel Stoner is appointed as representative of the Class.
4. Pursuant to California Rules of Court, rule 3.764, Pelton Graham LLP is appointed as Class Counsel.

5. The rulings on the parties' requests for judicial notice and evidentiary objections are as set forth in Section II above.
6. Plaintiff's proposed form and method of class notice are approved, subject to the parties meeting and conferring on a final notice. The notice shall be sent in English and Spanish. Within 30 days of entry of the order, SCA shall provide to the Class Administrator the Class list and pertinent data to the Class administrator. Plaintiff's counsel shall advance the costs of administration, and SCA shall bear the cost of compiling the Class data producing the Class list.
7. Within 60 days following the completion of merits discovery, or by such date otherwise set by the Court, Plaintiff shall file a supplemental trial plan that specifies the form of proof for each phase of trial and preserves SCA's right to litigate its affirmative defenses. Through further Case Management Conference(s), the Court will address the schedule for merits discovery and dispositive motions and will revisit manageability if necessary.
8. Nothing in this decision shall be construed to resolve the merits of whether the CPWL covers SCA's street sweeping, which is an issue that remains for resolution at summary adjudication or trial.

Plaintiff shall prepare the order in accordance with California Rules of Court, rule 3.1312.

- oo0oo -

Calendar Line 2

Case Name: *Valdez v. Christopher Ranch, LLC*
Case No.: 21CV392732

This is a representative action arising from alleged wage and hour violations. Plaintiff seeks penalties under the Private Attorneys General Act (“PAGA”), alleging failures to pay overtime and minimum wages, indemnify necessary business expenses, provide meal and rest periods, provide wage statements and maintain records, and timely pay wages after separation.

Plaintiff moves for approval of the PAGA settlement reached by the parties, and the motion is unopposed. As discussed below, the Court GRANTS the motion for approval of the PAGA settlement, VACATES the Case Management Conference set for 2:30 p.m. on June 3, 2026, and sets a compliance hearing for March 3, 2027 at 2:30 p.m. in Department 11.

I. Legal Standard

A trial court must review and approve any settlement of an action filed under the Private Attorneys General Act (“PAGA”). (Lab. Code, § 2699, subd. (s)(2).) The trial court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529 (*Carrington*); *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Settlement Terms and Administration

A. Provisions of the Settlement

Plaintiff moves for approval of a proposed settlement made on behalf of a group of Aggrieved Employees, defined as:

All persons who worked for Defendant in California as an hourly, non-exempt employee at any time during the applicable PAGA Release Period [December 24, 2020 to the earlier of October 8, 2025, or the date on which the Court